

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.272	0.217	0.012	0.299	0.324
Trial Fee-Shifting	0.250	0.169	0.007	0.279	0.218
Complete Fee-Shifting	0.325	0.267	0.039	0.357	0.485